



# CONSTITUTIONAL AMENDMENTS — FULL MIND MAP

Topic-wise · Fully Explained · Hinglish · SSC / BPSC / BSSC / Railway



## Topics in this chapter:

1. Article 368 — Power, Procedure & Initiation
2. State Ratification — Half of States & Federal Provisions
3. Passage, President Assent & No Joint Sitting
4. Early Amendments — 1st, 15th & 26th
5. Amendment Mapping & Chronology — 13th to 99th
6. 42nd, 44th & NJAC — High-Yield Changes
7. Anti-Defection, Hindi Text, Voting Age & Delhi
8. Reservation, RTE, Commissions & Ministry Size
9. Co-operatives, Land Boundary, GST & 105th
10. Basic Structure Doctrine & Major Cases
11. DPSP vs FR & Amendment-Case Matching
12. Nari Shakti, 98th Bill & Source-Era Amendment Count
13. Exam Traps — Source Conflicts / Time-Sensitive Items

## 1. Article 368 — Power, Procedure & Initiation

- Article 368 Parliament ki Constitution-amending power/procedure ka core provision hai. Source ke mutabik amendment addition, variation ya repeal ke through ho sakta hai; Q1 explanation saath hi Basic Structure limitation note karta hai. [Q1, Q2, Q4, Q5]
- Constitution Amendment Bill ko dono Houses separately special majority se pass karte hain; Ordinary/Money/Finance Bill wala route nahi. Amendment initiative Lok Sabha ya Rajya Sabha — kisi bhi House se ho sakta hai; State Legislature ya President initiate nahi karte. [Q3, Q6, Q7, Q8]

## 2. State Ratification — Half of States & Federal Provisions

- Article 368(2) proviso wale specified federal provisions ke liye Parliament ki special majority ke saath not less than one-half State Legislatures ki ratification chahiye. State Assembly resolution pass/reject kar sakti hai; source Q9 time-limit na hone ka point bhi deta hai. [Q9, Q12]
- Half-state ratification examples: federal provisions, Supreme Court/High Court provisions, Article 368 procedure, President election, States ki Parliament representation aur Seventh Schedule Lists. New State formation/Art.169 type matters ko source is category se alag rakhta hai. [Q10, Q11, Q13, Q14]
- Source ke hisab se Third Constitutional Amendment, 1954 pehli amendment thi jo Article 368(2) requirement ke under State Legislatures se ratify hui; Concurrent List Entry 33 re-enact ki gayi. [Q15]

## 3. Passage, President Assent & No Joint Sitting

- Constitution Amendment Bill ko each House independently pass karna hota hai. Upper House reject kare to Bill drop hota hai; joint sitting ka provision nahi. Source Article 368 mein do methods note karta hai: special majority; aur special majority + half-State ratification. [Q16, Q18]
- Prior Presidential recommendation required nahi. Bill President ko present hone ke baad assent obligatory hai; source is mandatory assent ko 24th Amendment Act, 1971 se link karta hai aur Article 368 amendment bhi note karta hai. [Q17, Q19, Q20]

## 4. Early Amendments — 1st, 15th & 26th

- First Amendment Bill 1951 mein aaya. Source ke mutabik First Amendment ne Articles 31A/31B aur Ninth Schedule add ki, land/agrarian reform laws ko judicial challenge se protection dene ki context thi; judicial interpretations of Fundamental Rights ko overcome karna immediate backdrop bataya gaya. [Q21, Q22, Q23, Q24, Q25]

- 15th Amendment, 1963 se Supreme Court Judge ki age determine karne ke authority/manner ke liye Parliament-by-law provision source mein diya hai; 26th Amendment, 1971 ne former princely rulers ke privy purses/special rights abolish kiye. [Q26, Q27]

## 5. Amendment Mapping & Chronology — 13th to 99th

- Source match set: 13th → Nagaland; 18th → term 'state' clarification; 39th → President, Vice-President, Speaker aur Prime Minister ke election ko challenge nahi kiya ja sakta; 52nd → Anti-Defection Law. [Q28]
- Source match set: judicial review power curtailment → 38th; Right to Property ko Fundamental Right se remove karna → 44th; voting age 21 se 18 → 61st; Preamble mein 'Secular' word add karna → 42nd. [Q29]
- Source match set: 69th → Delhi as National Capital Territory; 75th → State-level Rent Tribunals; 80th → 10th Finance Commission recommendations; 83rd → Arunachal Pradesh Panchayats mein SC reservation exception. [Q30]
- Provision-match set: Co-operative societies → 97th; SC/ST backlog protection → 81st; NJAC → 99th; Council of Ministers size limit → 91st. Year match: 42nd–1976, 52nd–1985, 86th–2002, 96th–2011. [Q31, Q32]

## 6. 42nd, 44th & NJAC — High-Yield Changes

- 42nd Amendment (1976) ko source 'Mini Constitution' kehta hai. Preamble mein Socialist, Secular, Integrity; 10 Fundamental Duties; aur Article 39A, 43A, 48A additions source explanation mein highlighted hain; Fundamental Duties Swaran Singh Committee recommendation se linked hain. [Q33, Q34, Q35]
- 44th Amendment ke source points: President Council of Ministers ki advice ko ek baar reconsideration ke liye return kar sakta hai. Q36 ke official treatment mein options C aur D dono 'not true' maane gaye; Q38 mein 39th Amendment/PM election aur 99th Amendment/NJAC distinction diya hai. [Q36, Q37, Q38]
- 99th Constitutional Amendment ne National Judicial Appointments Commission (NJAC) banaya; source ke mutabik Constitution Bench ne ise 2015 mein unconstitutional declare kiya. [Q39]

## 7. Anti-Defection, Hindi Text, Voting Age & Delhi

- Anti-Defection Law = 52nd Constitutional Amendment Act, 1985; Tenth Schedule add hui. Floor-crossing/defection ke repeated source questions isi mapping ko test karte hain. [Q40, Q41, Q42, Q43]
- 58th Amendment Act, 1987 ne Constitution ka authoritative Hindi text publish karne ko authorize kiya. 61st Amendment ne voting age 21 se 18 ki; source Q45 ise 1988 aur Q46 wording mein Act 1989 bolta hai. [Q44, Q45, Q46]
- 69th Amendment, 1991 ke Delhi questions mein source explanations 'National Capital Region' phrase use karte hain, jabki source Q30 match explanation 'National Capital Territory' kehta hai — exact source framing preserve ki gayi hai. [Q47, Q48, Q49]

## 8. Reservation, RTE, Commissions & Ministry Size

- 79th Amendment (1999) source ke mutabik SC/ST aur Anglo-Indian representation/reservation period ko 10 saal extend karta hai; explanation 95th aur 104th extensions ka later context bhi deta hai. [Q50, Q51]
- Source Q52 '93rd Constitution Amendment Bill' ko 6–14 years free/compulsory education proposal ke roop mein describe karke kehta hai ki ye 86th Constitutional Amendment Act, 2002 bana. 86th Amendment ne Article 21A insert karke Right to Education ko Fundamental Right banaya; implementation/RTE Act source 1 April 2010 se link karta hai. [Q52, Q53, Q54, Q55, Q56, Q57]
- 89th Amendment, 2003 ne combined SC/ST Commission ko NCSC (Art. 338) aur NCST (Art. 338A) mein bifurcate kiya. 91st Amendment, 2003 ne Union/State Council of Ministers size ko respective House strength ka 15% cap kiya. [Q58, Q59, Q60, Q61, Q62, Q63]
- 93rd Amendment Act source ke mutabik educational institutions mein OBCs ke 27% reservation se linked hai. [Q64]

## 9. Co-operatives, Land Boundary, GST & 105th

- 97th Amendment ko source co-operative societies ki constitutional status/protection se link karta hai: Article 19(1)(c) mein 'Co-operative Societies' aur Part IX-B; Article 243(ZJ) ke source answer mein Board directors maximum 21. [Q65, Q66, Q67]
- 100th Amendment Act, 2015 = India–Bangladesh Land Boundary Agreement implementation; source figures India → Bangladesh 111 enclaves, Bangladesh → India 51 enclaves. 101st Amendment, 2016 = GST; source 1 July 2017 rollout note karta hai. [Q68, Q69]
- Source matching: 94th → Article 164; 95th → Article 334; 96th → Eighth Schedule; 103rd → Article 15. 105th Amendment, 2021 ko States ki SEBC identify/specify power se link kiya gaya; assent 18 Aug 2021. [Q70, Q71]

## 10. Basic Structure Doctrine & Major Cases

- Source chronology: Golaknath (1967) → 24th Amendment (1971) → Kesavananda Bharati (1973) → 42nd Amendment (1976). Golaknath ko Parliament ki amendment power par first limitation wala case bataya gaya. [Q72, Q73]
- Kesavananda Bharati v. State of Kerala (1973) = Basic Structure Doctrine. Source ke repeated questions ke mutabik Parliament amend kar sakta hai, lekin Constitution ke basic structure ko destroy/abrogate nahi kar sakta. [Q74, Q75, Q76, Q77, Q78, Q80]
- Fundamental Rights amend karne ki competence Parliament ke paas hai, subject to Basic Structure limitation — source Q79 ka direct rule. [Q79]

## 11. DPSP vs FR & Amendment-Case Matching

- 25th Amendment, 1971 source ke mutabik Articles 39(b),(c) implement karne wale laws ko Articles 14, 19 (aur explanation mein 31) challenge se protection deta hai. Q82 source 42nd vs 44th distinction aur Minerva Mills framing test karta hai. [Q81, Q82]
- Case–Amendment match source: Indira Gandhi v. Raj Narain → 39th; Minerva Mills → 42nd; Kihoto Hollohan → 52nd; P. Sambamurthy → 32nd. [Q83]

## 12. Nari Shakti, 98th Bill & Source-Era Amendment Count

- Nari Shakti Vandan Adhiniyam source: women-reservation provisions first census-after-Act based delimitation ke baad effective; 15-year duration from commencement; SC/ST reserved seats ke within one-third women reservation. Isliye source Q84 mein statements 2 & 3 correct. [Q84]
- Source Q85 ke mutabik Constitution (98th Amendment) Bill National Judicial Commission constitution se related tha aur Arun Jaitley ne present kiya. [Q85]
- Source-era count question: May 2013 tak 98 Constitutional Amendments implemented; same explanation Jan 2020 tak 104th Amendment implemented note karta hai. Is number ko current-count ke roop mein silently update nahi kiya gaya. [Q86]

### 13. Exam Traps — Source Conflicts / Time-Sensitive Items

#### **EXAM TRAP — Q36 — MULTIPLE CORRECT**

Source explicitly 'Multiple Correct Answers (Ans. C & D)' mark karta hai. Dono ko preserve kiya gaya; single-answer mein force nahi kiya. [Q36]

#### **EXAM TRAP — SOURCE WORDING CONFLICT — DELHI**

Q30 explanation 69th Amendment ko Delhi = National Capital Territory ke saath match karta hai; Q47–Q49 explanations 'National Capital Region' wording use karte hain. Source discrepancy ko jaisa hai waisa flag kiya gaya. [Q30, Q47, Q48, Q49]

#### **EXAM TRAP — SOURCE YEAR / BILL FRAMING**

Q45 source 61st Amendment Act ko 1988 bolta hai, Q46 wording/explanation 1989 label use karta hai. Q52 '93rd Amendment Bill' ko education proposal batakar 86th Amendment Act, 2002 bana hua explain karta hai. In source-era wordings ko silently reconcile nahi kiya. [Q45, Q46, Q52]

#### **EXAM TRAP — TIME-SENSITIVE SOURCE FACT**

Q86 ka amendment count May 2013 / Jan 2020 snapshot hai. Q84 implementation delimitation/census condition ke saath source-specific hai. Inhe present-day current-affairs fact samajhkar overwrite nahi kiya gaya. [Q84, Q86]